

		witness statements, and other documents that relate to Plaintiff's alleged injury and damages. Accordingly, the Court grants the motion for an order compelling Plaintiff to comply with the deposition notice and orders Plaintiff to appear for his deposition within 14 days of the notice of ruling, or on such other date as agreed to in writing by Defendant. In connection with the motion, Defendant is awarded \$3,387.06 in attorneys' fees and costs. (Code Civ. Proc., §§ 2023.010, 2023.030.) The Court denies Defendant's request for a terminating sanction. As noted in prior rulings (see ROA 305), Defendant has not met its burden of showing that it would be appropriate for the Court to impose the "ultimate sanction of termination" at this juncture. (<i>Atlas v. Davidyan</i> (2025) 113 Cal.App.5th 1086, 1095; see also Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145.) Defendant shall give notice of the ruling.
5	First Foundation Inc. vs. Keller 2025-01493220	1. Motion to Compel Production 2. Motion to Compel Production 3. Motion to Compel Production 4. Motion to Compel Production Continued to 09/28/2026
6	Le vs. Dang 2024-01429637	Motion to Set Aside/Vacate Default and Judgment Continued to 11/09/2026
7	Lomeli de Facio vs. Sodexo, Inc. 2020-01162342	Motion to Compel Production Stayed per appeal.
8	Martinez vs. Fritzsche	Motion to Compel Deposition (Oral or Written)

	2025-01477393	Defendants Adam Fritzsche's, William Fritzsche's, and Jennifer Fritzsche's motion to compel the deposition of Plaintiff Elmer Paul Martinez, Jr. is granted. Code Civ. Proc. § 2025.450(a) provides that when a party deponent is served with a deposition notice and, without having served a valid objection under Code Civ. Proc. § 2025.410, fails to appear for deposition the party giving notice may move for an order compelling the deponent's attendance and testimony at deposition. The motion must be accompanied by either a meet and confer declaration stating "facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" or "a declaration stating that the moving party contacted the deponent to inquire about the nonappearance." (Code Civ. Proc. § 2025.450(b)(2).) Defendants first noticed Plaintiff's deposition on 8/12/25 for 9/23/25. (Warren Decl., ¶ 4.) Subsequently, based on the parties' agreement, Defendants re-noticed it for 10/23/25, then 12/3/25, and then 1/27/26. (Warren Decl., ¶¶ 5-6.) Defendants again re-noticed the deposition for 2/16/26 (a date provided by Plaintiff's counsel). (Warren Decl., ¶7.) Plaintiff failed to show up for the deposition. (<i>Id.</i>) Plaintiff again failed to show up for his deposition on 2/24/26, which was thereafter provided as an available date by Plaintiff's counsel. (Warren Decl., ¶ 8.) Finally, Defendants noticed the deposition for 3/19/26 and again Plaintiff failed to appear. (Warren Decl., ¶ 9.) Plaintiff filed an opposition stating that Plaintiff is an elderly individual who suffers from diagnosed dementia and other mental health impairments. Counsel outlines the efforts they have taken to try to get Plaintiff to his deposition including arranging transportation, and communicating with the property manager of Plaintiff's residence. The Court is certainly sympathetic with Plaintiff's and his counsel's position, and appreciates counsel's candidness and professionalism. With that said, the only motion presently before the Court is this motion to compel deposition. Plaintiff does not submit any sort of evidence such as medical records or a doctor's note stating that he is not mentally capable of sitting for a deposition. Trial is currently set for October. It is Plaintiff seeking damages from Defendants; thus, Defendants have a right to prepare to defend themselves at trial and take Plaintiff's deposition in furtherance of that end. Accordingly, the motion is granted. Plaintiff is ordered to appear for his deposition within 20 days of this ruling.
--	---------------	---

		The parties are ordered to meet and confer regarding any reasonable accommodations that can be made, including the possibility of conducting the deposition at Plaintiff's residence. Defendants' request for sanctions against Plaintiff is granted in the amount of \$447.00 to be paid within 30 days. (Code Civ. Proc., § 2025.450(g)(1).) A finding of willfulness is not a prerequisite to imposing sanctions. There is no evidence before the Court that supports that Plaintiff acted with substantial justification here. As stated above, Defendants have noticed the deposition on seven different occasions, beginning almost a year ago. They have no doubt incurred significantly more in costs (e.g., court reporter non-appearance fees) than they request. Defendants shall give notice.
9	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	Demurrer to Complaint The Court overrules Defendant Donald & Lynn Southard LLC's Demurrer to Plaintiff Bonita M. McPherson on behalf of Western Tap Manufacturing Company, Inc.'s Complaint. Defendant shall answer the Complaint within 15 days. <u>RJN</u> The Request for judicial notice is granted. However, the Court may not take judicial notice of the truth of the matter stated in the documents. (<i>Richtek USA, Inc. v. uPI Semiconductor Corp.</i> (2015) 242 Cal.App.4th 651, 659-660.) Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as distinguished from the contents of documents filed therein. (<i>Fremont Indem. Co. v. Fremont Gen. Corp.</i> (2007) 148 Cal.App.4th 97, 113.) The court cannot accept as true the contents of pleadings or exhibits in the other action just because they are part of the court record or file. Such documents are inadmissible hearsay. (<i>Day v. Sharp</i> (1975) 50 Cal.App.3d 904, 914.) Further, the Court may take judicial notice of documents recorded with the County Recorder's Office; however, that does not mean it may take judicial notice of factual matters stated therein. (<i>Poseidon Development, Inc. v. Woodland Lane States, LLC</i> (2007) 152 Cal.App.4th 1106, 1117.) Courts may also take judicial notice of a